

PCL308784 Discover Bank vs. Valdez, Roger Jr

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-14

Motion: Motion for Entry of Judgment Pursuant to Code of Civil Procedure section 664.6

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Re: Discover Bank vs. Valdez, Roger Jr

Case No.: PCL308784

Date: July 14, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Motion for Entry of Judgment Pursuant to Code of Civil Procedure section 664.6

Tentative Ruling: To grant the motion and enter judgment as requested.

Facts

In this matter, Plaintiff, on February 23, 2026, filed a stipulation whereby Plaintiff and Defendant agree that Defendant is indebted to Plaintiff in the amount of \$3,803.15.

The parties agreed to resolve this matter for the sum of \$3,100 for 24 monthly payments of \$129.32 commencing February 28, 2026 with a final payment on January 28, 2028.

In the event of default, the Parties agreed that the Court was authorized to enter judgment in favor of the Plaintiff and against Defendant in the amount of \$3,803.15, plus court costs and less payments received.

On May 8, 2026, Plaintiff filed this motion to enter judgment pursuant to Code of Civil Procedure section 664.6, noting that Defendant has failed to make any of the scheduled payments. Plaintiff has likewise filed a memorandum of costs seeking recovery of \$990.11.

The Court notes this matter has not been dismissed.

Authority and Analysis

Section 664.6 (a) states:

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

"The court's retention of jurisdiction under section 664.6 includes jurisdiction over both the parties and the case itself, that is, both personal and subject matter jurisdiction." (Lofton v. Wells Fargo Home Mortgage (2014) 230 Cal.App.4th 1050, 1061.) "Section 664.6 permits the trial court judge to enter judgment on a settlement agreement without the need for a new lawsuit." (Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1360.)

As indicated above, the Court retained jurisdiction over the parties and this matter pursuant to the filed stipulation and order dismissing this matter.."

Based upon the declaration of Plaintiff's counsel and, the Court, having no opposition, grants the motion and enters judgment in the amount requested of \$4,793.26, consisting of the \$3,803.15 in principle, plus \$990.11 in costs.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.